Re: ...The proceedings for Ms Vida Reid (2023/3361) and Forward Focused Group Pty Ltd (2023/4494) be stayed [SEC=OFFICIAL] [AGSDMS-DMS.FID4932078]

From: vida Reid (vida_reid@yahoo.com)

To: Karlie.Dickinson@ags.gov.au; brisbane.registry@art.gov.au

Bcc: Reid.simon4@gmail.com

Date: Wednesday 12 February 2025 at 03:09 pm AWST

Good Afternoon,

I just called the ART and was connected to the Perth office for some reason. I have been advised that the hearing tomorrow is via video conference.

I would like to note that I have not been provided with any links or time although now i have been advised over the phone by the ART perth Branch that is it at 10am Brisbane time.

I kidnly request that you please send me a link to the meeting asap.

Kind Regards,
Vida
Sent from my iPhone

> On 4 Feb 2025, at 10:16 PM, vida Reid <vida_reid@yahoo.com> wrote:
>
> Dear ART and Miss Dickinson,
>
> Please find attached my formal response regarding the stay of proceedings in matters 2023/3361 and 2023/4494.
>
> I note that Mr. Monks was included as a third party in prior correspondence by Miss. Dickinson regarding my recent submission on 28th Jan 2025.
>
> To ensure transparency, procedural fairness and to address the breach of privacy that has taken place, I am sending this response to all parties involved. However, I formally request that all further correspondence regarding my application be directed solely to me, as I am self-represented, and that my confidential submissions not be shared with any third parties without my explicit consent and my legal rights are upheld. I reserve all my legal rights.
>
> Given the urgency of the matters outlined in my response, I request immediate acknowledgment of receipt and confirmation that my application will be considered

without unnecessary delay.

Should you require any further information, please let me know.

Kind regards,
Vida Reid

On Monday 3 February 2025 at 06:57:06 am AWST, Dickinson, Karlie <karlie.dickinson@ags.gov.au> wrote:

OFFICIAL

Dear Mrs Reid

Thank you for forwarding your application requesting and the reasons why you seek, a stay of your application and that of FFG.

I have copied Mr Tom Monks, who represents your husband Simon and also the Brisbane Registry to this email (as the email that you had for them had a small error which may have delayed receipt of your email).

Given your application contains information that is also relevant to your husband, we would be grateful if **Tom and Co Legal** could **urgently** confirm whether Mr Simon Reid is also seeking a stay of this application. We would particularly appreciate if we could be informed of Mr Reid's position by the end of this week (i.e. Friday 7 February), given an interlocutory hearing has been listed for Thursday 13 February 2025.

Please be aware that I have taken provisional instructions from the Commission and it may be possible to agree to your request without the need for a hearing, however we are unable to confirm our position until we have an indication as to Mr Simon Reid's approach to his application.

Yours sincerely

Karlie Dickinson

Karlie Dickinson
Senior Lawyer

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My working days are: Monday, Tuesday and Wednesday

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OFFICIAL

From: vida Reid <vida_reid@yahoo.com>
Sent: Tuesday, 28 January 2025 3:38 AM
To: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; sydney.registry@aat.gov.au; Perth Registry <perth.registry@aat.gov.au>; brisbane.registry@att.gov.au; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: The proceedings for Ms Vida Reid (2023/3361) and Forward Focused Group Pty Ltd (2023/4494) be stayed

Dear ART Registry,

I refer to the ongoing proceedings involving myself, **Vida Reid (2023/3361)**, and **Forward Focused Group Pty Ltd (2023/4494)**. I am now self-representing, and I would like to sincerely apologize for any delay in providing this update to the Tribunal. I was previously advised by my legal representatives that they would be providing updates to the ART and have assumed that all necessary notifications have been made up to this stage.

I wish to request that the Tribunal grant a **stay of proceedings** in my matter, as well as the associated matter for **Forward Focused Group Pty Ltd**, based on the principles and reasoning already presented, argued and accepted earlier on in these ongoing hearings.

As demonstrated in the submissions from the Respondent (dated 29 November 2023- I have attached it in this email for your convenience), the argument for a stay was successfully made on the basis that:

1. **Concurrent investigations and proceedings** exist, which could be compromised by the continuation of the AAT process.
2. Witnesses involved in criminal proceedings or ongoing investigations may be reluctant or fearful to participate, potentially jeopardizing fair outcomes in either forum.
3. Evidence and facts remain unresolved and are the subject of dispute in concurrent proceedings.

The same principles apply directly to these matters. The ongoing and unresolved investigations, as referenced in the Respondent's submissions, are still **active and substantive**, which makes it unreasonable to progress the AAT applications at this time.

Given this, I propose the following directions:

1. That the proceedings for **Vida Reid (2023/3361)** and **Forward Focused Group Pty Ltd (2023/4494)** be **stayed until further order** of the Tribunal to ensure no prejudice arises due to concurrent investigations and unresolved evidence disputes.
2. If the Respondent, NDIS and the Commissioner of the NDIS Quality and Safeguards Commission can **confirm that no further investigations are ongoing**, I would be open to **continuing with my application**.

In requesting this stay, I note the Respondent's own prior argument made in support of their application for a stay, as highlighted in their submissions:

- "Criminal proceedings will be potentially jeopardized if witnesses to those proceedings also give evidence in these AAT proceedings" (Respondent's Submissions, 29 November 2023, Paragraph 10).
- "[The Tribunal] must exercise care in ensuring no prejudice arises to the concurrent investigations or future proceedings" (Respondent's Submissions, Paragraph 12).

Applying the **same rationale and precedent** already accepted in this matter, it is evident that staying these proceedings aligns with principles of procedural fairness and efficiency.

I have copied the Respondent's legal representative, (AGS), into this email for their awareness and to ensure full transparency.

Please do not hesitate to contact me if further information is required. I look forward to your confirmation regarding this request.

Kind regards,
Vida Reid

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ART - Serious Concerns - Breach of Privacy and Human Right.pdf
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